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| 2. | <b>Woodson vs. The Estate of Rebecca Woodson (Dec'd)</b><br><br><b>24-01393092</b> | <b>1. Demurrer to Complaint</b><br><b>2. Case Management Conference</b><br><br><b>O/C Dismissal Filed</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 3. | <b>Ruskey vs. Salman</b><br><br><b>24-01416981</b>                                 | <b>Demurrer</b><br><br><b>NTS filed August 6, 2026. ROA 162</b><br><br><b>OSC re: Dismissal of Settled Case set for December 3, 2026. ROA 165</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 4. | <b>Nguyen vs. Ottoni</b><br><br><b>25-01535128</b>                                 | <b>1. Motion to Compel Answers to Form Interrogatories</b><br><b>2. Motion to Compel Answers to Special Interrogatories</b><br><b>3. Motion to Compel Production</b><br><b>4. Motion to Deem Facts Admitted</b><br><br>Plaintiff Leeanna Nguyen's Motions to Compel Defendant Bruno Ottoni's responses to Special Interrogatories, Set One; Form Interrogatories, Set One; Request for Production of Documents, Set One; and Motion to Deem Request for Admissions, Set One are DENIED.<br><br>Discovery must be served on a party by mail, Express Mail, overnight mail, and electronic means at the party's last known office or residential address. (Code Civ. Proc. §, 1013.) When a party is represented by counsel, the service of papers, when required, must be upon the attorney instead of the party. (Code Civ. Proc., § 1015.)<br><br>On January 20, 2026, prior to appearing in this action, Plaintiff served Defendant with the discovery by mail at 7415 Blackhawk Circle, Buena Park, CA 90620. Defendant asserts he did not reside at that address at the time of service. Rather, his address was 8830 Academy Drive, Unit B, Buena Park, CA 90621.<br><br>Defendant appeared in this action on February 10, 2026, by serving an Answer through his counsel of record. On February 12, 2026, Plaintiff emailed Defendant's counsel with a "courtesy copy" of the discovery. Therefore, Plaintiff asserts Defendant has waived any service defect by accepting service through his counsel.<br><br>A courtesy copy sent to counsel does not constitute an independent act of service. (See <i>Hern v. Howard</i> (2009) 177 Cal.App.4th 1193, 1204-1205 [the trial court's direction to provide a courtesy copy did not extend time for the attorney to respond to the summons and complaint |

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|    |                                                                                        | <p>as it did not constitute a separate, independent act of service.].) Because service of the discovery was defective, Defendant was justified in not timely responding to the discovery.</p> <p>Ultimately, Defendant provided responses to the discovery on August 6, 2026, and waived the defective service. Thus, the motion to compel responses to the discovery at issue is moot.</p> <p>Plaintiff contends that that the motion is not moot with respect to sanctions. The Code provides that the court shall impose monetary sanctions against any party or attorney who unsuccessfully opposes a motion to compel unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, 2031.300, 2033.280.)</p> <p>In this case, the Court finds Defendant was substantially justified in not providing timely responses due to the defective service.</p> <p>Accordingly, the motions are DENIED in their entirety, including as to sanctions.</p> <p>Moving Party to give notice.</p> |
| 5. | <p><b>Coronado vs. Sub-zero Excavating, Incorporated</b></p> <p><b>25-01472342</b></p> | <p><b>1. Motion to Compel Answers to Special Interrogatories</b><br/> <b>2. Motion to Compel Further Responses to Form Interrogatories</b><br/> <b>3. Motion to Compel Production</b><br/> <b>4. Motion to Compel Response to Requests for Admissions</b><br/> <b>5. Case Management Conference</b></p> <p><b><u>Motion to Compel Responses to Form Interrogatories</u></b></p> <p>Defendant Sub-Zero Excavating, Inc.'s (Sub-Zero) motion to compel responses to its first set of form interrogatories is <b>CONTINUED to October 5, 2026, at 1:30 p.m. in Department CM02 in Costa Mesa.</b></p> <p>Sub-Zero is ORDERED to file a copy of the notice of motion and motion to compel responses to its first set of form interrogatories, <b>before August 31, 2026.</b></p> <p>At this time, a copy of the motion does not appear in the record. It appears Sub-Zero may have inadvertently filed a second, duplicate copy of its counsel's supporting declaration (see ROA Nos. 112, 125) instead of the subject notice of motion and motion.</p>                                                                          |